

Code of Ethics

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I. Fundamental Responsibilities

CapVisor employees shall:

- I(A) Maintain knowledge of and comply with all applicable laws, rules, and regulations of any government, government agency, regulatory organization, licensing agency, or professional association governing the employee's professional activities.
- I(B) Not knowingly participate or assist in any violation of such laws, rules or regulations.

II. Relationships with and Responsibilities to the Profession

II(A) Professional Misconduct

CapVisor employees shall not engage in:

- II(A.1) Any professional conduct involving dishonesty, fraud, deceit or misrepresentation or commit any act that reflects adversely on their honesty, trustworthiness, or professional competence.
- II(A.2) Any conduct or commit any act that compromises the integrity of CapVisor Associates or the integrity of their colleagues.

II(B) Prohibition Against Plagiarism

CapVisor employees shall not copy or use, in substantially the same form as the original, material prepared by another without acknowledging and identifying the name of the author, publisher, or source of such material. Employees may use, without acknowledgement, factual information published by recognized financial and statistical reporting services or similar sources.

III. Relationships with and Responsibilities to CapVisor

III(A) Duty to CapVisor:

Employees shall not undertake any independent practice that could result in compensation or other benefit in competition with their employer unless they obtain written consent from both CapVisor and the persons or entities for whom they undertake independent activities.

III(B) Disclosure of conflicts to CapVisor:

Employees shall disclose to CapVisor all matters, including beneficial ownership of securities or other investments that reasonably could be expected to interfere with their duty to CapVisor or ability to make unbiased and objective recommendations.

III(C) Disclosure of additional compensation arrangements:

Employees shall disclose to CapVisor in writing all monetary compensation or other benefits that they have received for their services that are in addition to compensation or benefits conferred by CapVisor.

III(D) Responsibility of supervisors:

Employees with supervisory responsibilities, authority, or the ability to influence the conduct of others shall exercise reasonable supervision over those subject to their supervision or authority to prevent any violation of applicable statutes, regulation, or provisions of the Code and Standards. In so doing, all employees are entitled to rely on reasonable procedures designed to detect and prevent such violations.

IV. Relationships with and Responsibilities to Clients and Prospects

IV(A) Investment Process

IV(A.1) Reasonable Basis and Representations

Employees shall:

- a. Exercise diligence and thoroughness in making investment recommendations or in taking investment actions.
- b. Have a reasonable and adequate basis, supported by appropriate research and investigation, for such recommendations or actions.
- c. Make reasonable and diligent efforts to avoid any material misrepresentation in any research report or investment recommendation.
- d. Maintain appropriate records to support the reasonableness of such recommendations for actions.

IV(A.2) Research reports

Employees shall:

- a. Use reasonable judgment regarding the inclusion or exclusion of relevant factors in research reports.
- b. Distinguish between facts and opinions in research reports.
- c. Indicate the basic characteristics of the investments involved when preparing for public distribution a research report that is not directly related to a specific portfolio or client.

IV(A.3) Independence and Objectivity

Employees shall:

IV(A.3) Use reasonable care and judgment to achieve and maintain independence and objectivity in making investment recommendations or taking investment actions.

IV(B) Interactions with Clients and Prospects

IV(B.1) Fiduciary Duties

IV(B.1) In relationships with clients, employees shall use particular care in determining applicable fiduciary duty and shall comply with such duty as to those persons and interests to whom the duty is owed. Employees must act for the benefit of their clients and place their clients' interests before their own.

IV(B.2) Portfolio Investment Recommendations and Actions

Employees shall:

- a. Make a reasonable inquiry into client's financial situation, investment experience, investment objectives and risk tolerance prior to making any investment recommendations and shall update this information as necessary, but no less frequently than annually, to allow the employee to adjust their investment recommendations to reflect changed circumstances.
- b. Consider the appropriateness and suitability of investment recommendations or actions for each portfolio or client. In determining appropriateness and suitability, employees shall consider applicable relevant factors, including the needs and circumstances of the portfolio or client, the basic characteristics of the investments involved, and the basic characteristics of the total portfolio. Employees shall not make a recommendation

unless they reasonably determined that the recommendation is suitable to the client's financial situation, investment experience, and investment objectives.

- c. Distinguish between facts and opinions in the presentation of investment recommendations.
- d. Disclose clients and prospects the basic format and general principles of the investment processes by which securities are selected and portfolios are constructed and shall promptly disclose to clients and prospects any changes that might significantly affect those processes.

IV(B.3) Fair dealing

Employees shall:

- a. deal fairly and objectively with all clients and prospects when disseminating investment recommendations, disseminating material changes in prior investment recommendations, and taking investment action.

IV(B.4) Priority of Transactions

IV(B.4) Transactions for clients shall have priority over transactions in securities or other investments of which an employee of CapVisor is the beneficial owner so that such personal transactions do not operate adversely to their clients' or employers' interests. If employees make a recommendation regarding an investment or investment strategy, they shall give their clients and employer adequate opportunity to act on the recommendation before acting on the own behalf. For purposes of the Code and Standards, an employee is a "beneficial owner" if the employee has;

- a. The direct or indirect pecuniary

interest in the investment or strategy.

- b. The power to vote or direct the voting of shares of the security or investments.
- c. The power to dispose or direct the disposition of the security or investment

IV(B.5) Preservation of Confidentiality

Employees shall:

Preserve the confidentiality of information communicated by clients, prospects, vendors or intermediaries concerning matters within the scope of the client - employee, prospect - employee, or CapVisor - employee relationship unless the employee receives information concerning illegal activities on the part of the client, prospect, or CapVisor.

IV(B.6) Prohibition Against Misrepresentation

Employees shall not make any statements, orally or in writing, that misrepresent:

- a. The services that they or CapVisor are capable of performing;
- b. Their qualifications or the qualifications of CapVisor;
- c. The employee's academic or professional credentials.

IV(B.7) Disclosure of Conflicts to Clients and Prospects

Employee shall disclose to their clients and prospects all matters, including beneficial ownership of securities were other investments, then reasonably would be expected to impair the employees ability to

make unbiased and objective
recommendations.

IV(B.8) Disclosure of Referral Fees

Employees shall disclose to clients and prospects any consideration or benefit received by the member or delivered to others for the recommendation of any services to the client or prospect.

V. Relationships with and Responsibilities to Investors

V(A) Prohibition Against Use of Material Nonpublic Information

- a. Employees who possess material nonpublic information related to the value of a security shall not trade or cause others to trade in that security if such trading would breach a duty or if the information was misappropriated or relates to a tender offer. If employees receive material nonpublic information in confidence, they shall not breach that confidence by trading or causing others to trade in securities to which such information relates.
- b. Employees shall make reasonable efforts to achieve public dissemination of material nonpublic information disclosed in breach of a duty.

V(B). Performance Presentation

- a. Employees shall not make any statements, orally or in writing, that misrepresent the investment performance that investment managers have accomplished or can reasonably be expected to achieve.
- b. If employees communicate investment managers' performance information directly or indirectly to clients or prospective clients, or in a manner intended to be received by clients or perspective clients, employees shall make every reasonable effort to assure that such performance information is a fair, accurate, and complete presentation of such

performance.

I have read and understand this code of ethics and will abide by all of its provisions and requirements.

A handwritten signature in black ink, appearing to read 'Carl E. Terzer', is positioned above a horizontal line.

Signature:

Name:

Carl E. Terzer

Title:

Principal

Date:

September 8, 2008